

23CHCV01732 23CHCV01732

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C08%2F20%2F2026

Source SHA-256: bb8c296bf56a26197fae7915bd1adef59976a44d85361861678bf07af89c4420

Case Number: 23CHCV01732 Hearing Date: August 20, 2026 Dept: F49

Dept. F49

Date: 8/20/26

Case Name: Rosa Wong; Ronald Wong vs. Adam Ripp; Tracey Ripp; and Does 1-10

Case No. 23CHCV01732

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 20, 2026

MOTION TO QUASH

DEPOSITION SUBPOENA

Los Angeles Superior

Court Case No. 23CHCV01732

Motion filed: 4/6/26

MOVING PARTY: Defendants Tracey Ripp and Adam Ripp

RESPONDING PARTY: Plaintiffs Rosa Wong and Ronald

Wong

NOTICE: OK

RELIEF REQUESTED: An order from this Court quashing the deposition subpoena served on third party NewRez LLC.

TENTATIVE RULING: The motion is DENIED.

BACKGROUND

This action arises from the alleged nonpayment of rent pursuant to a lease agreement between Plaintiffs Rosa Wong and Ronald Wong (collectively, "Plaintiffs") and Defendants Adam Ripp and Tracey Ripp ("Tracey") (collectively, "Defendants"). On June 14, 2023, Plaintiffs filed the Complaint against Defendants and Does 1 through 10, alleging breach of lease.

On June 11, 2025, the parties stipulated to judgment in the amount of \$90,396.15 in favor of Plaintiffs. Judgment was entered the same day.

On April 6, 2026, Defendants filed the instant motion to quash the deposition subpoena for business records served on NewRez LLC (the "Motion").

On August 3, 2026, Plaintiffs filed an Opposition.

No reply papers have been filed.

ANALYSIS

Code of Civil

Procedure section 1987.1 provides that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order

quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1.) A party may bring a motion pursuant to section 1987.1. (§ 1987.1, subd. (b)(1).)

A. Motion to Quash Subpoenas

Defendants are judgment debtors. To aid in enforcement of the debt, Plaintiff served NewRez LLC (“NewRez”) with a subpoena for the production of business records related to property known as 1915 Malcolm Avenue #102, Los Angeles, CA 90025 (the “Subject Property”). (Mot., Ripp Decl., at p. 4.) NewRez is a lender who issued a mortgage loan in Tracey’s favor on the Subject Property. (Mot., at p. 2.)

Defendants assert three grounds for quashing the subpoena to NewRez: (2) the Subject Property is not reachable by creditors, (2) the subpoena is overbroad and not reasonably calculated to lead to the discovery of admissible evidence, and (3) the subpoena violates Tracey’s right to privacy. (Mot., at pp. 2-3.) The Court examines each of these arguments in turn.

(1) The Trust Is Reachable by Tracey’s Creditors.

Defendants argue that the Subject Property is not reachable by creditors because it is held in an irrevocable third-party spendthrift trust. (Mot., at p. 3.) Defendants contend that because the Subject Property is not subject to enforcement of the judgment, documents related to it are irrelevant. (Ibid.)

Pursuant to Probate Code section 15301, “if [a] trust instrument provides that a beneficiary’s interest in principal is not subject to voluntary or involuntary transfer, the beneficiary’s interest in principal may not be transferred and is not subject to enforcement of a money judgment until paid to the beneficiary.” (Prob. Code, § 15301, subd. (a).) However, “[i]f the settlor is a beneficiary of a trust created by the settlor and the settlor’s interest is subject to a provision restraining the voluntary or involuntary transfer of the settlor’s

interest, the restraint is invalid against transferees or creditors of the settlor.” (§15304, subd. (a).)

The trust

property of a revocable trust is subject to the claims of the settlor's creditors “to the extent of the power of revocation during the lifetime of the settlor.” (Prob. Code, § 18200.)

Plaintiffs have

attached the following documents to their Opposition: (1) a Trust Transfer Deed, recorded on December 5, 2025 in the Official Records of the Recorder's Office of Los Angeles County as instrument number 20250879642; (2) a quitclaim deed recorded on December 15, 2025 as instrument number 20250907899; and (3) a deed of trust recorded on December 23, 2025 as instrument number 20250931786.

The Trust

Transfer Deed, executed and notarized on May 12, 2025, purports to effectuate a transfer involving a revocable trust. (Mot., Exh. 1.) The quitclaim deed, executed and notarized on December 15, 2025, purports to transfer all of Tracey's interest in the Subject Property to the Diana Trust, which the instrument identifies as a revocable trust. (Id., Exh. 2.) And the deed of trust, dated December 16, 2025, includes an Inter Vivos Revocable Trust Rider identifying Tracey as the settlor, trustee, and beneficiary of the Diana Trust. (Id., Exh.3.) These recorded instruments establish, contrary to Defendants' representations, that the Diana Trust is a revocable trust that is subject to the claims of Tracey's creditors pursuant to Probate Code section 18200. Documents relating to Tracey's interest in the Subject Property and its value and encumbrances are accordingly relevant to enforcement of the judgment against Defendants.

(2) Defendants Fail to Establish that the Subpoena Is Overbroad.

Defendants

contend that the requests are overbroad. The precise scope of the subpoena at issue is unclear based on the parties' filings. Tracey attests that the subpoena “seeks [her] personal loan file, escrow records, loan applications, underwriting documents, communications, internal policies, and a complete copy of the Diana Trust itself.” (Mot., Ripp Decl., at p. 5.) Plaintiffs confirm that the requests seek documents related to the loan, escrow records, loan applications, underwriting files, and the trust instrument, but aver that the

subpoena is narrowly tailored to seek documents related only to the Subject Property and the specific loan transaction with NewRez. (Opp'n, at p. 7.) Neither party submits a copy of the subpoena or states the text of the requests.

As discussed

above, documents relating to the Subject Property, including its value and encumbrances, are relevant to Plaintiffs' enforcement of the judgment awarded to them. The foregoing categories of documents appear to seek such information, and they are therefore relevant. Defendants fail to show that any specific request encompasses information that would not be relevant to enforcement of the judgment. The Court accordingly cannot find on the facts presented that the requests are overbroad.

(3) The Interests Weigh In Favor of Disclosure.

Lastly,

Defendants contend that the subpoena violates Tracey's constitutional right to privacy because it seeks Tracey's personal financial records. (Mot., at p. 3.)

While California

law permits broad discovery, this right is not absolute and must be balanced against the constitutional right to privacy. (Cal. Const., art. I, § 1; see Code Civ. Proc., § 2017.010.) California courts recognize that individuals have a right to privacy in their financial affairs. (Valley Bank of Nevada v. Super. Ct. (1975) 15 Cal.3d 652, 657.) When that right is implicated, courts engage in a careful balancing of the privacy interest with the right of litigants to discover relevant facts. (Ibid.)

Here, Plaintiffs have obtained a money judgment against Defendants. They therefore necessarily have an interest in discovering assets that might be used to satisfy the judgment, and as discussed above, the Subject Property is such an asset. California courts recognize a strong public policy favoring enforcement of judgments. (Shrewsbury Management, Inc. v. Super. Ct. (2019) 32 Cal.App.5th 1213, 1226.)

Defendants' prime argument against disclosure of documents related to the Subject Property is that the asset at issue is shielded by a spendthrift trust, rendering all information concerning the asset irrelevant. (Mot., at p. 3.) As noted above, however, the trust is revocable and its assets—including the Subject Property—are therefore subject to the claims of

Tracey's creditors as settlor.

Given the relevance of the information sought and the policy considerations favoring both discovery and enforcement of judgments, the Court finds that the competing interests weigh in favor of disclosure.

The Motion is
accordingly DENIED.

CONCLUSION

Defendants' motion to quash the deposition subpoena served on third party NewRez LLC is DENIED.

Moving party to give notice.